



US0D1090868S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,090,868 S**
Weiss (45) **Date of Patent:** **** Aug. 26, 2025**

(54) **NECK GUARD WITH FLAP**

FOREIGN PATENT DOCUMENTS

(71) Applicant: **Therese Ann Weiss**, Prairie du Sac, WI
(US)

CA 2313872 1/2002
CA 307934964 * 3/2023

(Continued)

(72) Inventor: **Therese Ann Weiss**, Prairie du Sac, WI
(US)

OTHER PUBLICATIONS

(**) Term: **15 Years**

"Skate Armor: Cut-Resistant Neck Guard." Found online Jan. 16, 2025 at amazon.com. Reference dated Aug. 8, 2023. Retrieved from <https://www.amazon.com/dp/B0CDZ574J3/>.

(21) Appl. No.: **29/926,754**

(Continued)

(22) Filed: **Jan. 31, 2024**

(51) **LOC (15) Cl.** **24-04**

(52) **U.S. Cl.**
USPC **D24/191**

(58) **Field of Classification Search**

USPC D24/155, 188, 189, 190, 191, 192, 200,
D24/206, 209; D2/600, 602; D29/100,
D29/101.1, 101.2
CPC .. A61F 5/055; A61F 5/05883; A61F 5/05891;
A61F 5/02; A61F 13/128; A61F
2007/0011; A61F 2007/001; A61F
5/3707; A61M 16/0683; A61M 16/0633;
A61M 16/0694; A63B 71/10; A63B
2244/108; A63B 71/1291

See application file for complete search history.

Primary Examiner — Kendra Leslie Hamilton

Assistant Examiner — Elizabeth S Struble

(74) *Attorney, Agent, or Firm* — Brannen Law Office,
LLC

(57) **CLAIM**

The ornamental design for a neck guard with flap, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a neck guard with flap, showing my new design;
FIG. 2 is a front view thereof;
FIG. 3 is a rear view thereof;
FIG. 4 is a left side view thereof;
FIG. 5 is a right side view thereof;
FIG. 6 is a top view thereof;
FIG. 7 is a bottom view thereof; and,
FIG. 8 is a perspective view of the neck guard with flap of FIG. 1, shown in condition of use for clarity of disclosure. The broken lines (dashed) shown in FIGS. 1-8 represent unclaimed portions of the neck guard with flap and form no part of the claimed design. The broken lines (dot-dashed) shown in FIG. 8 represent environmental matter and form no part of the claimed design.

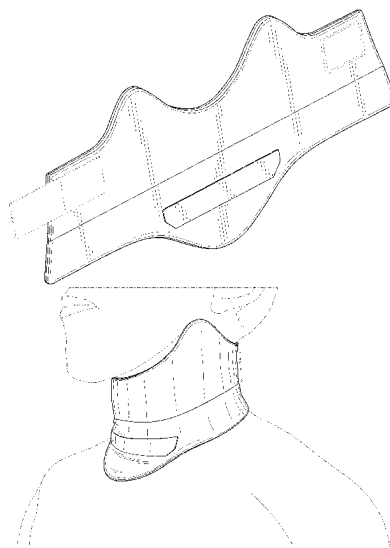
(56) **References Cited**

U.S. PATENT DOCUMENTS

3,320,950 A * 5/1967 McElvenny A61F 5/055
602/18
D221,407 S * 8/1971 Bond D24/191
4,324,003 A 4/1982 Johnston
4,333,179 A 6/1982 Laurita
4,449,251 A 5/1984 Gauthier
4,686,710 A 8/1987 Marston et al.
5,680,657 A 10/1997 Valtakari
5,794,276 A 8/1998 Walker
D408,542 S 4/1999 Hoover, Jr.
5,904,662 A * 5/1999 Myoga A61F 5/055
602/18

(Continued)

1 Claim, 6 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

6,044,498	A	4/2000	Schumann et al.	
D555,836	S *	11/2007	Foust	D29/101.2
D582,045	S *	12/2008	James	A47C 7/383 D6/601
D591,000	S	4/2009	Kanavage	
D627,893	S *	11/2010	Weiss	D24/191
D635,268	S	3/2011	Sagnip et al.	
D643,978	S *	8/2011	Abajo Alonso	D29/101.2
D762,924	S	8/2016	Holman et al.	
D785,806	S *	5/2017	Weiss	D24/191
D839,533	S	2/2019	Nardone et al.	
D841,825	S	2/2019	Rogers	
D900,327	S *	10/2020	Cleveland	D29/101.2
D933,244	S *	10/2021	Baird	D24/191
D940,961	S *	1/2022	Heath	D6/601
2004/0267178	A1 *	12/2004	Benckendorff	A61F 5/055 602/18
2011/0010830	A1	1/2011	Rosen et al.	
2011/0162131	A1	7/2011	Harty	
2013/0232654	A1	9/2013	Camillo	
2022/0338568	A1 *	10/2022	Weiss	A41D 13/015
2023/0110515	A1	4/2023	Dierkes	

FOREIGN PATENT DOCUMENTS

CA	211753	*	2/2024
CN	308029313		5/2023
CN	309067907	*	1/2024

OTHER PUBLICATIONS

“Bauer Hockey: Premium NLP21 Cut Resistant Neck Guard.” Found online Jan. 16, 2025 at amazon.com. Reference dated Aug. 24, 2022. Retrieved from <https://www.amazon.com/Bauer-Hockey-Premium-NLP21-Resistant/dp/B0CSMRZ3ZQ/>.*

“Generic: Hockey Neck Guard.” Found online Jan. 16, 2025 at amazon.com. Reference dated Dec. 20, 2023. Retrieved from <https://www.amazon.com/Hockey-Guard-Protector-Throats-Collar/dp/B0CQPN9442>.*

“Skate Armor: Impact neck guard comparison.” Found online Jan. 16, 2025 at amazon.com. Reference dated Dec. 21, 2021. Retrieved from https://www.youtube.com/watch?v=kcFm22_17M0.*

Aegis Impact Protection, Aegis Interceptor Hockey Neck Protector, as viewed at <https://www.amazon.com/Aegis-Interceptor-Hockey-Neck-Protector/dp/B09Q5ZFWCF> on Jan. 30, 2023. 6 pages. Indicated date of first availability: May 9, 2018.

Amazon, “Shock Doctor Ultra Neck Guard”, first available Apr. 8, 2021. (<https://www.amazon.com/Shock-Doctor-Ultra-Guard-Black/dp/B09237598X?th=1&psc=1>) (Year: 2021).

Amazon, “Bauer Hockey Premium NLP21 Neck Guard”, first available Aug. 25, 2022. (<https://www.amazon.com/Bauer-Hockey-Premium-NLP21-Guard/dp/B0BBSGBL38?th=1>) (Year: 2022).

* cited by examiner

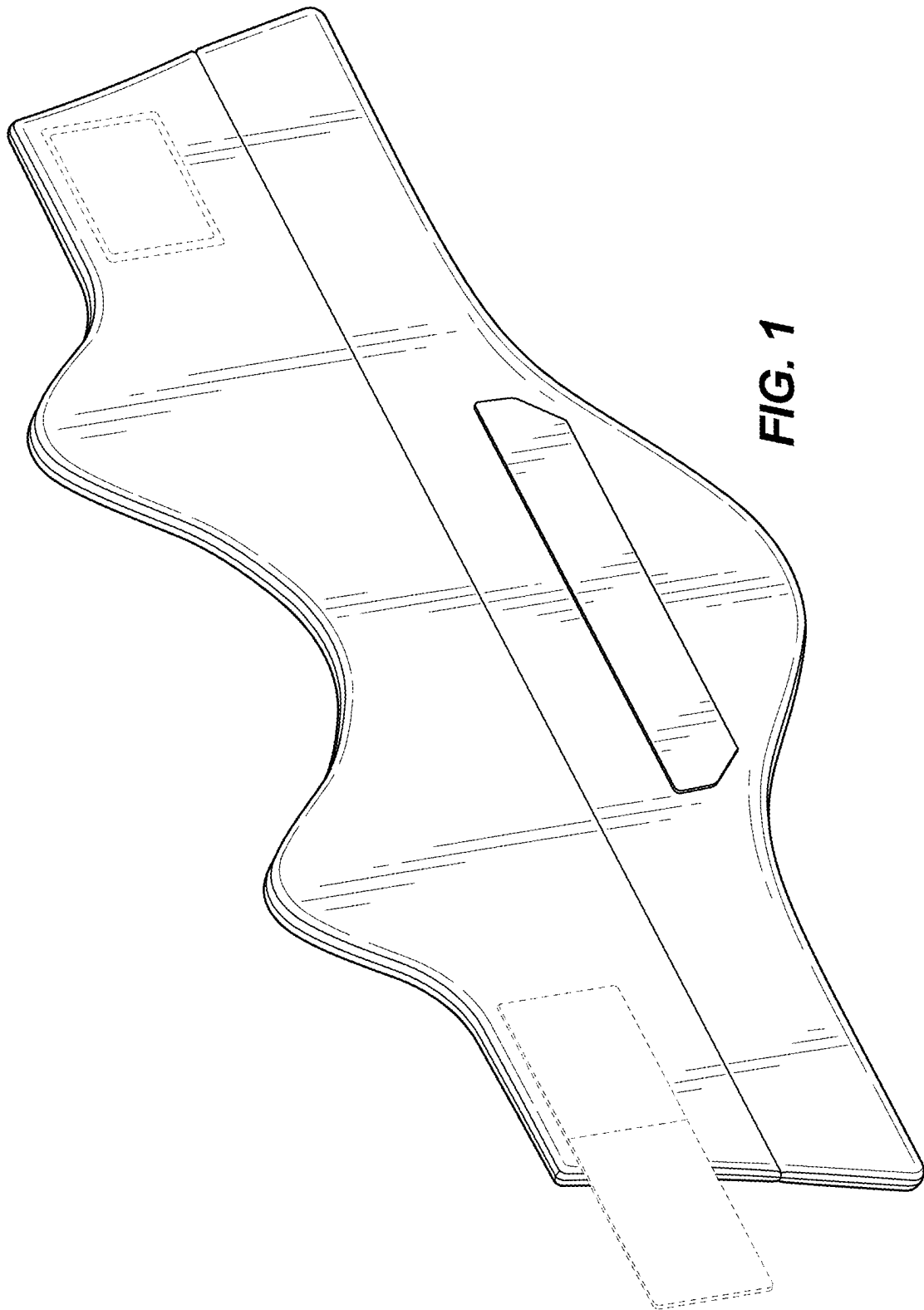


FIG. 1

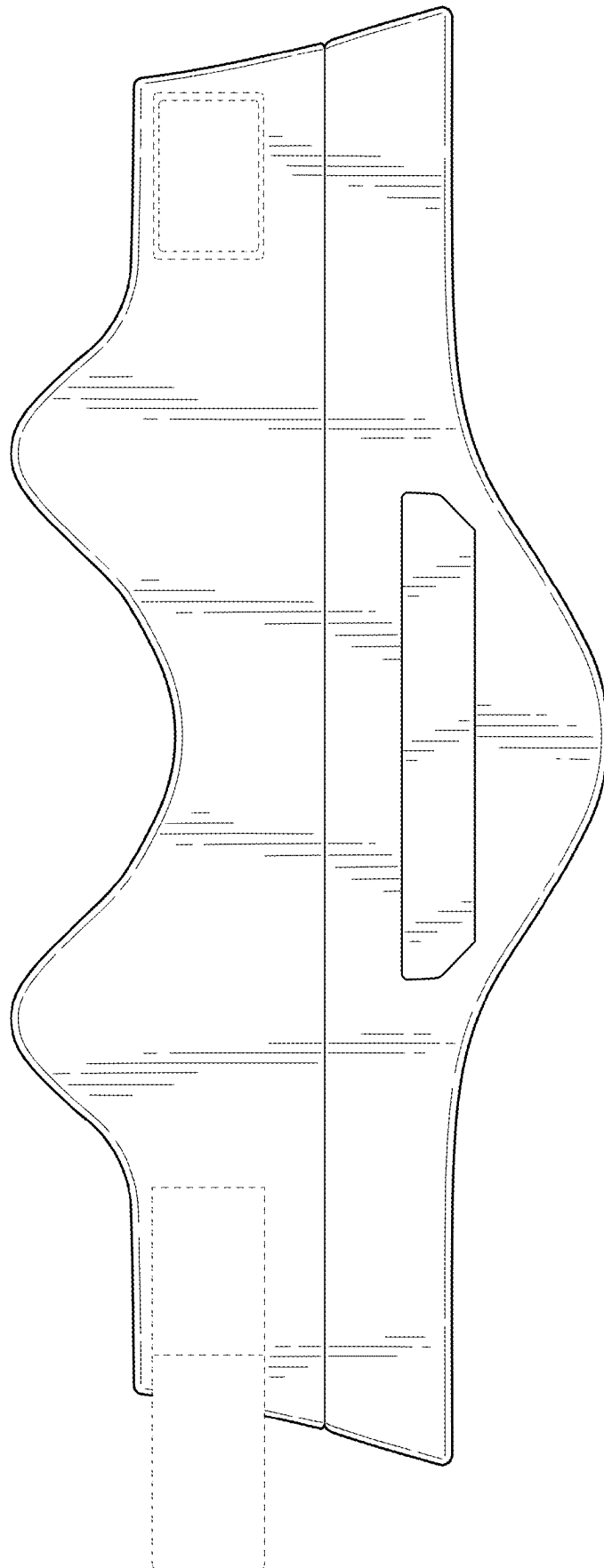


FIG. 2

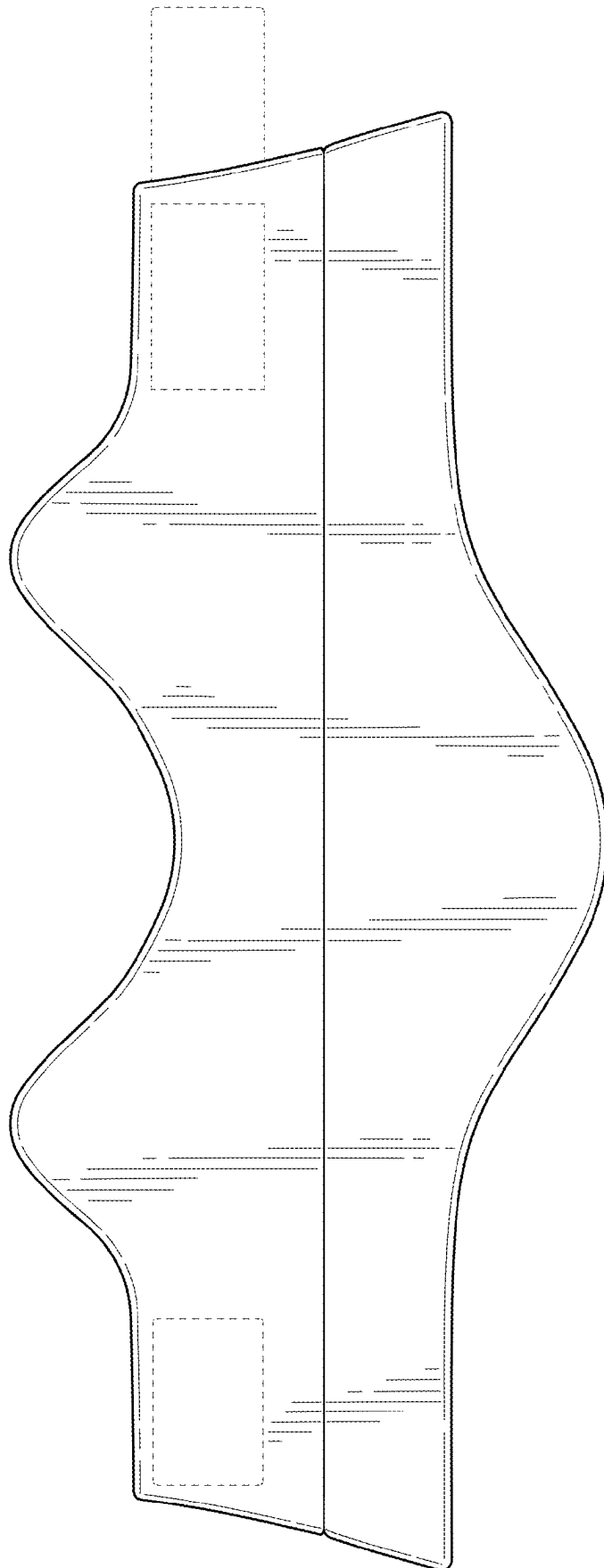


FIG. 3



FIG. 4



FIG. 5



FIG. 6

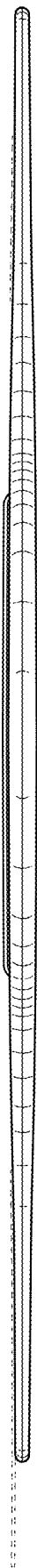


FIG. 7

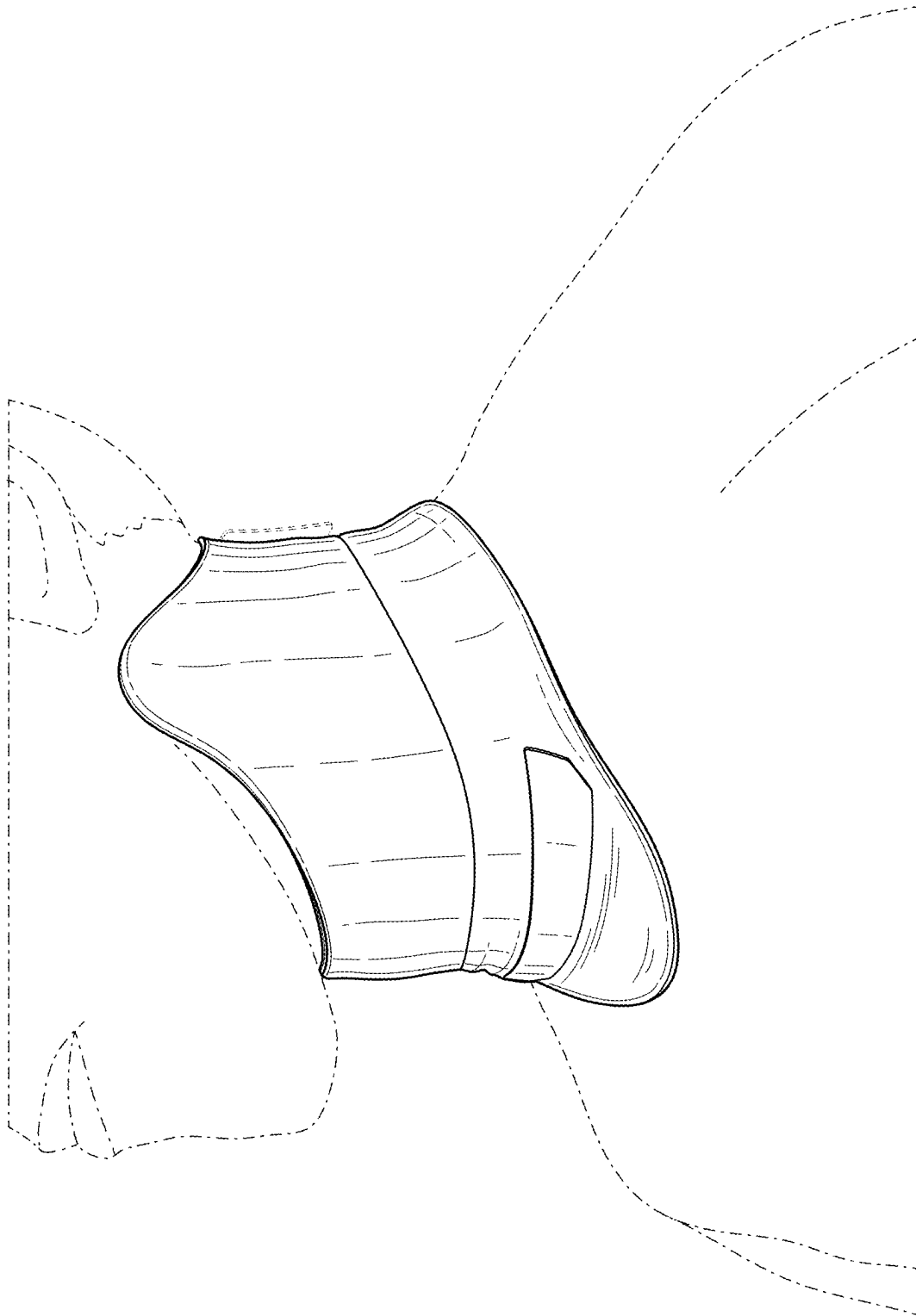


FIG. 8